

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

BED BATH & BEYOND INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND
OOCL (EUROPE) LIMITED, *Respondents*.

DOCKET NO. 23-02

Served: May 22, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

THIRD REVISED SCHEDULING ORDER

On May 21, 2024, the parties filed a joint motion to extend expert witness deadlines (“JSR”). The March 21, 2024, briefing schedule stated that: “The parties did not request modified deadlines for discovery, but indicate they may do so. Any requests to modify the discovery deadlines should conclude all discovery by September 10, 2024, and should allow the parties to meet these briefing deadlines.” Briefing Order at 1.

The parties state that they “have met and conferred regarding deposition scheduling and completion of discovery prior to September 10, 2024, and jointly request the following amended schedule to complete discovery within that time period.” JSR at 2. The discovery schedule proposed by the parties completes discovery by September 10, 2024, as required, and will allow the parties to timely complete the briefing schedule. Therefore, it is reasonable and accepted.

The parties are hereby **ORDERED** to follow this revised schedule:

July 19, 2024 Report of Complainant’s experts, if any, to be provided to Respondent.

July 26, 2024 Respondent to identify rebuttal expert witnesses, if any.

Aug. 1, 2024 Last date to serve supplemental discovery requests.

Aug. 15, 2024 Respondent to provide Complainant with rebuttal experts’ reports, if any.

Aug. 22, 2024 Depositions of expert witnesses may begin.

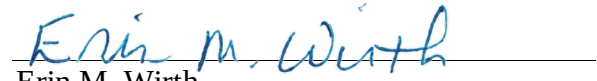
Sept. 10, 2024 Close of discovery.

Oct. 11, 2024 Complainant’s Opening Brief, Proposed Findings of Fact, and Appendix.

Nov. 11, 2024 Respondents’ Opposition Brief, Proposed Findings of Fact, Appendix, and Responses to Complainant’s Proposed Findings of Fact.

Nov. 26, 2024 Complainant’s Reply to Respondents’ Brief and Proposed Findings of Fact.

Given the Commission's initial decision deadline, the parties should expect to meet the scheduled they propose without any further extensions. Any issues remaining may be addressed in the parties' briefs. The parties should review the initial order and the briefing requirements in the June 8, 2023, scheduling order.


Erin M. Wirth
Chief Administrative Law Judge